



SPONSOR: Rep. Ross Levin & Sen. Lockman
Reps. Berry, Chukwuocha, Heffernan, K. Johnson,
Lambert, Phillips, Michael Smith, Snyder-Hall; Sens.
Cruce, Hoffner, Pinkney, Seigfried, Richardson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 274

AN ACT TO AMEND TITLE 30 OF THE DELAWARE CODE RELATING TO THE CHILD AND DEPENDENT
CARE EXPENSE TAX CREDIT.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 1114, Title 30 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 1114. Child care and dependent care expense credit.

4 (a) A resident individual shall be entitled to a credit against that individual's tax otherwise due under this chapter
5 in the amount of ~~50 percent~~ 100% of the child and dependent care expense credit allowable for federal income tax purposes
6 for the same tax year. In no event shall the allowable credit under this subsection exceed the tax otherwise due under this
7 chapter.

8 (b) In the case of spouses who file a joint federal return but who elect to determine their Delaware taxes separately,
9 the credit allowed pursuant to this ~~subsection~~ section may only be applied against the tax imposed on the spouse with the
10 lower taxable income, computed without regard to such credit, and shall not exceed such tax.

SYNOPSIS

This Act increases the state child and dependent care expense tax credit from the current 50% match to a full
100% match with the federal child and dependent care expense tax credit.